

discussions into subsequent sections of the statement, but may instead simply refer to them by, for example, “See Discussion at P:L-L, above.”

Ms. Scheuner may, no later than July 30, 2026, file and serve a responsive separate statement. Because the Court does not weigh the evidence on an anti-SLAPP Motion, the responsive separate statement should be limited to citing evidence, if any, that Ms. Scheuner contends negates RORE’s purported showing as a matter of law.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of Jo Ellen Francis

25PR000061

FIRST ACCOUNT AND REPORT OF STATUS; PETITION TO CONTINUE
ADMINISTRATION OF ESTATE; AND FOR APPOINTMENT OF SUCCESSOR TRUSTEE
TO DECEDENT’S TRUST

TENTATIVE RULING: The Petition is GRANTED. The matter is set for a Status Hearing Re: Final Distribution on July 15, 2027, at 8:30 a.m. in Dept. B.

The petition to appoint successor trustee is GRANTED.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

**Integon National Insurance Company v. Andrew Madison
Mackenzie-Davis et al**

26CV000413

DEFENDANT BRYSON HALL’S DEMURRER TO PLAINTIFF’S COMPLAINT

TENTATIVE RULING: The demurrer is OVERRULED. Hall is granted 10 days’ leave to answer the Complaint. (See Rules of Court, rule 3.1320(g).)

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER

Defendant Bryson Hall (“Hall”) demurs, pursuant to Code of Civil Procedure section 430.10, subdivisions (e), (f) and (g),² to Plaintiff Integon National Insurance Company’s (“Plaintiff”) Complaint asserting two causes of action for Declaratory Relief. The demurrer is brought on the grounds that (1) the Complaint is uncertain, ambiguous, and unintelligible and fails to attach the written instruments upon which the action is founded, and (2) the second cause of action fails to state facts sufficient to constitute a cause of action.

B. LEGAL STANDARD

A complaint must contain “facts constituting the cause of action.” (§ 425.10, subd. (a)(1).) The party against whom a complaint has been filed may object, by demurrer, on the grounds that “[t]he pleading does not state facts sufficient to constitute a cause of action,” “[t]he pleading is uncertain,” or “[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (§ 430.10, subds. (e)-(g).) A demurrer is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because “[a] demurrer tests only the legal sufficiency of the pleading . . . the question of plaintiff’s ability to prove the [] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

C. DISCUSSION

1. The Complaint is not Uncertain

Hall argues the Complaint is uncertain on four grounds. The first two grounds rely on material outside the four corners of the Complaint. Hall made no request or supporting argument for judicial notice of any of the facts outside the four corners of the Complaint. For both of these reasons, Hall’s first two grounds fail. (*Blank, supra*, 39 Cal.3d at 318 [a demurrer can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable].)

The third ground argues that the Complaint is uncertain for omitting the legal basis for Hall’s joinder. However, based on Hall’s comprehensive argument as to the purportedly relevant facts connecting him to the matter, and the allegations regarding Hall in Paragraphs 4, 9, 11, the Court does not agree with Hall’s contention that “[he] cannot understand what is being asserted against him or frame a meaningful response.” (Mem., 7:10-11.)

The fourth ground is purely procedural, arguing that the Complaint contains defective numbering of paragraphs because, the second cause of action because with paragraph number 1,

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

instead of continuing with paragraph number 17. This ground unnecessarily places form over substance and does not render the Complaint unintelligible.

It is well-established that a demurrer for uncertainty is disfavored and may only be sustained where the allegations render the complaint so incomprehensible that a defendant cannot reasonably respond. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.) The Court finds the Complaint to be entirely comprehensible such that Hall can reasonably respond.

Based on the foregoing, the demurrer brought on uncertainty grounds is OVERRULED.

2. The Complaint Need Only Plead the Legal Effect of the Subject Insurance Documents

Hall next argues that the Complaint fails to either attached the insurance documents at issue or plead the terms of the documents verbatim required by *Miles v. Deutsche Bank Nat'l Trust Co.* (2015) 236 Cal.App.4th 394, 401-02. In Opposition, Plaintiff argues that, under *Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198, a plaintiff may plead the legal effect of the policy language rather than attach the documents or allege the terms verbatim. Plaintiff argues that it has complied with that premise by sufficiently alleging the legal effect of the subject terms of the insurance documents. (Compl., ¶¶ 8, 10.)

The Court finds that the authority relied upon by Hall (*Miles*) recognizes the same premise as in *Construction Protective Services, Inc.* That is, a plaintiff may plead the legal effect of the contract rather than its precise language. (See *Miles, supra*, 236 Cal.App.4th at 402; see also Weil & Brown, et al., Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2026), Ch. 6-B, § 6:132.) The Court further finds that the Complaint sufficiently pleads the legal effect, as relevant, of the insurance documents.

Thus, the demurrer brought on the ground that the Complaint fails to attach the insurance documents or allege the terms verbatim is OVERRULED.

3. The Complaint Alleges Facts Sufficient to Constitute a Declaratory Relief Cause of Action as to Plaintiff's Duty to Defend

Finally, Hall argues that the second cause of action for declaratory relief as to Plaintiff's duty to defend fails to state a cause of action because it relies upon the same facts as alleged in support of the first cause of action for declaratory relief as to Plaintiff's duty to indemnify. Plaintiff argues that the duty to defend declaratory relief claim omits four necessary facts, three of which concern a separate litigation outside the four corners of the Complaint (discussed under Section (C)(1) *supra*) and the fourth concerns the same issue raised under Section (C)(2) *supra*. For the reasons explained above, the Complaint does not fail for omission of these facts.

In Opposition, Plaintiff argues that the same ultimate facts support both its first and second causes of action. Plaintiff argues that the only difference between the legal standards for a duty to indemnify (at issue on the first cause of action) and duty to defend (at issue on the second

cause of action) is that a duty to indemnify involves whether there is actual coverage and a duty to defend involves whether there is a potential for coverage. Where there is no potential for coverage, there is necessarily no actual coverage, and therefore it is reasonable that the same facts that support the duty to defend issue also support the duty to indemnify issue.

The Court finds Plaintiff's argument reasonable, and Hall filed nothing by way of a Reply. Thus, the demurrer on the ground that the second cause of action fails to state a cause of action is **OVERRULED**.

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Capital One, N.A. v. Sharon Salomon

26CV000771

MOTION TO QUASH SERVICE

TENTATIVE RULING: The motion is GRANTED.

A. PROCEDURAL MATTERS

Specially-appearing defendant Sharon Salomon ("Defendant") moves, pursuant to Code of Civil Procedure section 418.10, subdivision (a)(1),³ for an order quashing Capital One's ("Plaintiff") purported service of the summons and complaint on Defendant. Defendant so moves on the grounds that the Court lacks jurisdiction over Defendant because the process server left the summons and complaint at Defendant's residence on May 15, 2026 without the knowledge or presence of Defendant, failing to comply with personal service requirements.

B. LEGAL STANDARD

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (§ 418.10, subd. (a)(1).)

"When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service." (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413. Internal quotes omitted.) A proof of service by a registered process server establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return. (Evid. Code, § 647; see also *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 [filing of proof of service that complies with the applicable statutory requirements creates a rebuttable presumption of proper service].)

C. DISCUSSION

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.